

		The above items total \$3,173.00 in reductions from the requested lodestar. Defendant argues that 13.7 hours of time billed on this matter should be stricken because the work performed is clerical in nature. The Court agrees that time spent uploading files to counsel's filing system is not recoverable, as these tasks are purely secretarial in nature and need not be performed by a paralegal. The hours billed for uploading documents total to 0.55 hours at a rate of \$215/hour. Therefore, an additional \$118.25 is deducted from the total requested fees. Based on the Court's experience and knowledge of the prevailing rates in the Orange County area for similar services, the Court finds the remaining number of hours and counsel's hourly rates to be reasonable. Considering the above, the Motion for Attorney Fees is GRANTED in the total amount of \$31,610.90. Plaintiff to give notice
108	Allies Tax Relief, Inc. vs. Allies Tax Services, Inc. 25-01483396	1. Motion to Lift Stay Plaintiff ALLIES TAX RELIEF, INC. ("Plaintiff") moves this Court for an order lifting the stay imposed by the Court's November 25, 2025, minute order and restoring this action to active litigation status. Plaintiff further requests that the Court restore or reset Plaintiff's discovery matters previously taken off calendar pursuant to the stay. Motion is denied. If a foreign corporation subject to Corp. Code §§ 2100 et seq. transacts intrastate business and fails to comply with the certification requirements of Corp. Code § 2105, it will not

be permitted to maintain any action or proceeding on any intrastate business transacted in any court in California before compliance with Corp. Code § 2105. [Corp. Code, § 2203, subd.(c)].

Once a foreign corporation commences an action regarding intrastate business, and defendant has asserted by special demurrer or as an affirmative defense in its answer the corporation's lack of capacity to maintain the action due to its failure to qualify to transact intrastate business, the case should be abated to obtain a judicial determination on the issue. In that hearing, the defendant bears the burden of proving that: (1) the action arose out of the transacting of intrastate business by the foreign corporation; and (2) the action was commenced by the corporation prior to qualifying to transact intrastate business. If defendant meets its burden of proof, the suit should be stayed to permit the foreign corporation to comply with the qualification requirements. [United Medical Management Ltd. v. Gatto, 49 Cal. App. 4th 1732, 57, 57 Cal. Rptr. 2d 600 (2d Dist. 1996)]

Furthermore,

If the foreign corporation fails to comply, the matter should be dismissed without prejudice. Id.

Here, on 11/25/2025, this Court sustained Defendant's demurrer and stayed the action because Plaintiff failed to timely file an opposition. Notably, the central argument in that demurrer was that Plaintiff lacked capacity to maintain the action because it is a foreign corporation that is not qualified to do business in the state of CA.

		As such, Defendant effectively sustained its burden as required above. Plaintiff must now show either that it is not a foreign corporation, that it doesn't transact intrastate business, or that it has complied. To that end, Plaintiff fails to show compliance. Ca Corp Code§2203(c) 2. Order to Show Cause re: Dismissal The court will dismiss unless the parties want to be heard regarding compliance as stated above.
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